

25VECV04437 25VECV04437

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-08-10

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Case Number: 25VECV04437 Hearing Date: August 10, 2026 Dept: T

25VECV04437 Jarquin-Jacob v Mazda

Tentative

rulings

DEFENDANT'S MOTION TO COMPEL DEPOSITION OF

PLAINTIFF with request for production of documents:

Grant motion to compel deposition, Deny motion to compel documents for failure to provide a Separate Statement per CRC 3.145.

However, plaintiff is still required to comply with the Code for production of documents as if no motion had been made.

9/22/2025 Defendant

served a notice of taking deposition with an advisement that alternate dates would be accommodated.

11/6/2025 Plaintiff

served objections to the notice with no alternative dates.

11/6/2026 Defendant

propounded a 998 offer

11/10/2025 Defendant

requested a date for the deposition

11/17/2025 Plaintiff

provided 1/14/2026 as a date for the deposition

11/18/2025 Defendant

stated out on 1/14/2026 but indicated that may be able to get coverage but wanted a response to the 998

12/3/2025 Defendant

confirmed that 1/14/2026
was acceptable for deposition

12/5/2025 Plaintiff

provided alternative dates of 2/20/2026, 2/27/2026

12/8/2025 Defendant

asked whether plaintiff was available on 1/17/2026 and
Plaintiff responded that 1/17/2026 was still available

12/11/2025 Defendant

responded that the date discussed had been 1/14/2026, not 1/17/2026, and asked
for confirmation of 1/14/2026

12/16/2025 Plaintiff

confirmed that 1/14/2026
would work for the deposition

1/7/2026 Plaintiff

objected to the deposition notice but states that plaintiff will appear on 1/14/2026

1/8/2026 Defendant

acknowledge the objections and indicated that the repurchase offer had been
made and would plaintiff have interest in settlement discussions before
proceeding with discovery

1/13/2026 Plaintiff

had not responded to the 1/18/2026 so defendant advised the 1/14/2026
deposition would be continued and wanted to hear back from plaintiff

1/15/2026 Plaintiff

proposed 3/4/2026, 3/18/2026, and 3/26/2026 as deposition dates for plaintiff

1/22/2026 Plaintiff

followed up with defense asking whether those dates would work, there is no evidence of a response

2/3/2026 Defendant

requested a response to the 998 repurchase offers before locking in dates

3/26/2026 Defendant

again requested a response to the 998 repurchase offers

3/26/2026 Plaintiff said they would look into it and

get back to defendant

5/22/2026 Defendant

asked for plaintiff's deposition and proposed 5/28/2026, 5/29/2026 or June 2, 2026 as dates

5/26/2026 Defendant

asked for plaintiff to respond to the proposed dates but there was no response

6/8/2026 Defendant

asked for dates for plaintiff's deposition or else motion would be filed

No response was made by plaintiff

7/6/2026 Motion

to compel deposition was filed

7/28/2026 Plaintiff proposes 8/31/2026 or 9/7/2026 for

plaintiff deposition

The court finds that plaintiff did not

refuse to provide dates for deposition as there was ongoing dialogue for the

dates. However, the last time before the

motion was filed that plaintiff offered dates was 1/15/2026 and defendant did

not accept any of those dates.

Plaintiff has proposed 8/31/2026 or

9/7/2026. The court orders that

plaintiff's deposition take place on one of these dates at 10 a.m.

remotely. No sanctions are awarded. What the court sees is the usual back and

forth which took forever to lock down. Both sides were, at times, non-responsive to proposed dates.

DEFENDANT'S MOTION TO COMPEL INSPECTION:

Continued. On July 28, 2026, plaintiff's counsel advised that she returned the vehicle in June 2026 pursuant to her contractual obligations under the lease.

Given that defendant sought the inspection several times before plaintiff purportedly returned the vehicle, plaintiff is ordered to file and serve by _____ on what date she returned the vehicle, to what dealer the vehicle was returned, and produce a document from the dealer which shows the date of the return.

The motion is continued to

_____.

IT IS SO ORDERED,
CLERK TO GIVE NOTICE.